

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 06/22/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED
THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT
AS PER ABOVE.

Zoom link-

[https://contracosta-courts-
ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09)

Meeting ID: 161 108 5023
Passcode: 869677

Courtroom Clerk's session

1. 9:00 AM CASE NUMBER: C24-00074
CASE NAME: NEXT LEVEL STRATEGIES, INC. VS. NEXTGEN LABORATORIES, A CALIFORNIA CORPORATION
HEARING ON ORDER TO SHOW CAUSE IN RE: CONTEMPT AGAINST J. DEL SIGNORE
FILED BY:
TENTATIVE RULING:

Plaintiff and judgment creditor Next Level Strategies, Inc. ("Judgment Creditor") filed a Motion for an Order to Show Cause re Contempt against Joseph del Signore re Subpoena on November 19, 2026 (the "Motion for OSC"). The Motion for OSC was initially set for hearing on April 6, 2026. Later, the hearing date was reset by the Court on April 13, 2026.

On April 13, 2026, the Court granted the Motion for OSC and thereafter issued its Order to Show Cause re Contempt against J. Del Signore re Subpoena on April 29, 2026 (the "OSC").

The OSC ordered Joseph Del Signore (“Mr. Del Signore”) to respond to the subject Subpoena no later than 30 days after notice of entry of the order. See OSC, ¶4.A. If Mr. Del Signore failed to comply, he was ordered to show cause why the Court should not find him in contempt or other impose other punishment, including sanctions for the attorneys’ fees and costs incurred by the Judgment Creditor. *Id.* at ¶4.B.

The OSC was set for hearing on June 22, 2026.

On May 11, 2026, a Proof of Service of the OSC on Mr. Del Signore was filed. The Proof of Service reflects personal service of the OSC on Mr. Del Signore on May 6, 2026.

On June 8, 2026, the Judgment Creditor filed a Status Report with the Court. Among other things, the report includes a meet and confer letter directed to Mr. Del Signore recounting the history of the Subpoena and the OSC, demanding a response by June 5, 2026 or other action to resolve the matter.

Background

A money judgment was entered by the Court on May 14, 2024 (the “Judgment”) against defendant and judgment debtor NextGen Laboratories (the “Judgment Debtor”).

On August 12, 2024, the Court issued its Order to Appear for Examination directed to “Joseph Del Signore for NextGen Laboratories, a California corporation” (the “OEX”). The OEX was set for February 4, 2025.

The Judgment Creditor served a Civil Subpoena dated August 15, 2024 directed to “Joseph Del Signore President, NextGen Laboratories, a California corporation” with an address in Newport Beach, California (the “Subpoena”). See Declaration of Bryan D. Sampson and filed November 19, 2025, **Exhibit 3**; see also Affidavit filed December 12, 2025.

The Subpoena demands production of various documents, including various financial records (the “Records Sought”). *Id.* at **Exhibit 3**, Attachment 2.

The OEX and Subpoena were personally served on Joseph Del Signore. *Id.* at **Exhibit 4**.

On February 4, 2025 there was no appearance by Judgment Debtor for the OEX. The Court issued a bench warrant warning letter. See Minute Order dated February 4, 2025. The OEX was continued to March 4, 2025. *Id.*

There was no appearance at the continued OEX and the Court ordered a bench warrant be issued (to be prepared by counsel for Plaintiff with the related required paperwork). See Minute Order dated March 4, 2025.

Analysis

Disobedience of a subpoena duly served may be punished as a contempt of court. Code Civ. Proc. § 1991 (“Disobedience to a subpoena, or a refusal to be sworn, or to answer as a witness, or to subscribe an affidavit or deposition when required, may be punished as a contempt by the court issuing the subpoena.”); Code Civ. Proc. § 1209(a)(10) (“The following acts or omissions in respect to a court of justice, or proceedings therein, are contempts of the authority of the court: [¶] [d]isobedience of a subpoena duly served”); see *Chapman v. Superior Court of Los Angeles County* (1968) 261 Cal.App.2d 194, 197-198.

The Court finds that the OSC was served on the alleged contemnor, Mr. Del Signore, in the same manner as a summons. *Cedars-Sinai Imaging Medical Group v. Superior Court* (2000) 83 Cal.App.4th 1281.

If Mr. Del Signore (or attorney on his behalf) fails to appear on the OSC, the Court will issue a warrant for Mr. Del Signore's arrest to bring him before the Court to answer the OSC. Code Civ. Proc. § 1212. The Court shall endorse on the warrant a direction that the person charged may be released by posting a specified bail. See *id.* at § 1213.

Disposition

The Court finds and rules as follows:

1. Parties and Mr. Del Signore to Appear on the OSC.

2. 10:00 AM CASE NUMBER: MSC19-02043

CASE NAME: GARAVENTA VS AZARI

***HEARING ON MOTION IN RE: ORDER AUTHORIZING RECEIVER TO SATISFY THE REPAIR OBLIGATION**

FILED BY: DONELL, STEPHEN

TENTATIVE RULING:

Before the Court is a Receiver Stephen J. Donell's motion for order authorizing the receiver to satisfy repair obligation.

Background

The action arises out of business disputes between plaintiff Silvio Garaventa and defendant Mehrzad Azari. The operative first amended complaint filed November 4, 2019 alleges that Mr. Garaventa and Mr. Azari each owned 50 percent of defendant Pine Hollow Enterprises, a corporation, and they were also each a director of Pine Hollow. (FAC ¶¶ 1, 2.) At that time, Mr. Garaventa alleges he and Mr. Azari also each held 50 percent membership interests in the limited liability company defendant AGL Enterprises, LLC. (FAC ¶¶ 1, 2, 4.)

When the case began, Pine Hollow operated a gas station, convenience store and car wash on property owned by AGL. (FAC ¶ 9.) Pine Hollow leased the property from AGL. (FAC ¶ 9.) Pine Hollow had an agreement with CMA, an entity owned by Mr. Azari, to manage Pine Hollow. (FAC ¶¶ 4, 13.)

Relevant to Pine Hollow, Mr. Garaventa's FAC alleges causes of action against Mr. Azari for breach of fiduciary duty under California Corporations Code section 309 (1st C/A), and against Mr. Azari and nominally Pine Hollow for judicial dissolution of Pine Hollow under Corporations Code section 1800 (5th C/A), appointment of a receiver (6th C/A), and declaratory relief (7th C/A). Among other claims, Mr. Garaventa challenges the CMA management agreement and alleges other acts and omissions of Mr. Azari in managing Pine Hollow and Mr. Azari's alleged refusal to provide Mr. Garaventa information regarding the business operations and financial condition of Pine Hollow.

A. Mr. Azari's Corporations Code Section 2000 Election and Pine Hollow Valuation

In response to Mr. Garaventa's cause of action for involuntary dissolution of Pine Hollow pursuant to Corporations Code section 1800, Mr. Azari notified the Court and counsel of his election to exercise his right to purchase Garaventa's 50% ownership interest in AGL under the AGL operating agreement and in Pine Hollow pursuant to Corporations Code section 2000(a). The disputes over AGL and its